

provided for, the Court in a special case made repairs and improvements out of the *capital*, without any direction for recouping the capital out of the income (*d*).

31. **Augmentation of salaries.**—Where the direction of the founder was that the master of a school should receive 50*l.* a year, and the usher 30*l.*, and the trustees had raised the salaries respectively to 80*l.* and 60*l.*, as the will did not contain any prohibition against increasing the salaries, and it could not be supposed that the trustees were not under any circumstances to alter the amount, the Court refused to compel the trustees to refund the augmentations (*e*).

32. **Reduction of salaries.**—And, *vice versâ*, if a fund be given, not for the purposes of individual benefit, but for the discharge of certain duties, as for the support of a school-master, and the fund increases to such an extent as to yield more than a reasonable compensation for the duties to be performed, the Court will not allow the surplus to be expended unnecessarily, but will order it to be applied for the promotion of some other charitable purpose (*f*).

33. **Loans.**—Legacies had been left by several different testators (between the years 1545 and 1666) for the purpose of being lent out in sums varying from 5*l.* to 200*l.* without interest; and Sir J. Leach was of opinion, that, regard [*539] being had to the alteration in the value of *money, it was not inconsistent with the intention of the testators to raise the loans to sums varying from 100*l.* to 500*l.* (*a*).

34. **"Parishioners."**—Where the trust was to elect children, who or whose parents were *parishioners* of a certain parish, to Christ's Hospital, it was held by V. C. Malins, that the word "parishioner" must be taken in an honest and *bond fide* sense, and could not be applied to a person who had taken a small house temporarily for the mere purpose of ob-

(*d*) *Re Willenhall Chapel*, 2 Dr. & Sm. 467.

(*e*) *Attorney-General v. Dean of Christchurch*, 2 Russ. 321.

(*f*) *Attorney-General v. Master of Brentwood School*, 1 M. & K. 376, 394.

(*a*) *Attorney-General v. Mercers' Company*, 2 M. & K. 654; and see *Attorney-General v. Holland*, 2 Y. & C. 683; *Morden College case*, cited *Ib.* 701, 702.